

privileges to the same extent as the wife or husband and children of an envoy of a foreign sovereign Power accredited to His Majesty are entitled to the immunities and privileges accorded to the envoy.

2ND SCH.
—cont.

THIRD SCHEDULE

PROVISIONS OF THE DIPLOMATIC PRIVILEGES (EXTENSION) ACT, 1946, REPEALED

<i>Provision</i>	<i>Extent of Repeal</i>
Section one ...	In subsection (1), the words from "and accordingly" to the end of the subsection.
Section two ...	Paragraph (a).
The Second Schedule ...	The whole Schedule.

CHAPTER 8

Distribution of Industry Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Acquisition of land and creation of easements.
2. Provision by agreement of facilities on land not owned by Board.
3. Further provision for grants and loans.
4. Payments towards cost of removal and resettlement of key workers and their dependants.
5. Payments and receipts.
6. Short title, interpretation, construction and citation.

An Act to make further provision for the acquisition of land, creation of easements and carrying out of work in development areas ; to authorise the Board of Trade to make grants in exceptional cases in connection with the establishment in, or transfer to, development areas of industrial undertakings, and to make grants or loans to housing associations for the provision of dwellings in development areas ; and to extend section five of the Employment and Training Act, 1948, in relation to persons transferred for employment in industrial undertakings established in, or transferred to, development areas.
[12th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The power of the Board of Trade under section one of the principal Act to acquire land for the purpose of facilitating the provision of such premises, sites and means of access as are Acquisition of land and creation of easements.

mentioned in the said section one shall be exercisable, in the case of land including industrial buildings, notwithstanding that no, or no substantial, adaptation of the buildings is necessary for the purpose for which it is proposed to acquire the land:

Provided that—

- (a) where at the time of the publication, in accordance with the provisions of the Acquisition of Land (Authorisation Procedure) Act, 1946, as hereinafter applied, of notice of the preparation in draft of a compulsory purchase order the industrial building to which the draft order relates is in occupation for a purpose involving the use thereof to a substantial extent for the carrying on of any industrial process or in connection with any such process for the time being carried on by the occupier of the building, the Board shall not have power to make the compulsory purchase order;
 - (b) where on an objection duly made under the said Act of 1946, as so applied, any owner, lessee or occupier of the industrial building to which a draft compulsory purchase order relates represents that the building will be in such occupation as aforesaid within three months, the Board shall not make the compulsory purchase order (but without prejudice to the holding of any proceedings between the preparation thereof in draft and the making of the order) until the expiration of three months from the making of the objection or such longer period as the Board may allow, and where such an objection is made the last foregoing paragraph shall have effect with the substitution for the reference to the time of publication of notice of a reference to the expiration of the said period of three months or the said longer period, as the case may be.
- (2) For the purpose of meeting the requirements of industrial undertakings (including requirements arising from the needs of persons employed or to be employed therein) the Board of Trade may by agreement secure the granting, over land in a development area, of easements appurtenant to other such land, whether belonging to the Board or not.
- (3) The Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply in relation to the compulsory purchase of land by the Board of Trade under the principal Act or this Act as if in paragraph (b) of subsection (1) of section one of the said Act of 1946 references to the Minister of Transport and to the enactments therein mentioned included references to the Board of Trade and to the principal Act and this Act.
- (4) In the application of this section to Scotland, for the references to the Acquisition of Land (Authorisation Procedure) Act, 1946, there shall be substituted references to the Acquisition

of Land (Authorisation Procedure) (Scotland) Act, 1947, and for the reference to an easement there shall be substituted a reference to a servitude.

(5) In paragraph (a) of section one of the principal Act the words "by a compulsory purchase order made under this Act" and the words from "for the provision" to "means of access", and subsection (1) of section twelve of the principal Act, subsection (2) of section sixteen thereof, and the Second Schedule thereto, are hereby repealed:

Provided that any proceedings for the compulsory purchase of land under the principal Act begun, but not completed, before the passing of this Act may be continued and completed as if this section had not been passed.

2. Where it appears to the Board of Trade expedient, for the purpose of facilitating the carrying on of an industrial undertaking in a development area, that any work should be carried out on land not held by the Board, the Board may with the agreement of all persons interested in that land carry out the work.

Provision by agreement of facilities on land not owned by Board.

3.—(1) Where it is proposed to establish an industrial undertaking in a development area, or to transfer the whole or any part of an industrial undertaking for the purpose of its being carried on in a development area, and on an application in that behalf by the person by whom the undertaking is to be carried on in the development area the Board of Trade are satisfied that there are exceptional circumstances which render it expedient that the Board should make to the said person a grant in respect of expenditure or loss arising in connection with the establishment or transfer, or in respect of any description of expenditure or loss so arising, the Board may with the consent of the Treasury make such a grant.

Further provision for grants and loans.

(2) The Board of Trade may with the consent of the Treasury make grants or loans to housing associations (as defined by the Housing Act, 1936, as amended by the Housing Act, 1949, or in Scotland as defined by the Housing (Scotland) Act, 1935, as amended by the Housing (Scotland) Act, 1949) where the Board are satisfied that the grants or loans will further the provision in a development area of dwellings for persons employed or to be employed in the area.

4.—(1) The following provisions shall have effect for assisting the transfer of persons from employment in an industrial undertaking, wherever carried on, to employment in an industrial undertaking (in this section referred to as "the new undertaking") which is being established in a development area by way of extension of or in connection with, or by way of transfer of the whole or part of, the first-mentioned undertaking.

Payments towards cost of removal and resettlement of key workers and their dependants.

(2) If on an application in that behalf as respects any person the Minister of Labour and National Service is satisfied that for the purpose of facilitating the establishment of the new undertaking it is expedient that he should exercise his powers under this subsection in connection with such a transfer, he may for the purposes of section five of the Employment and Training Act, 1948 (which provides for payments towards the cost of removal and resettlement of workers and their dependants and towards their maintenance and welfare in the course of their removal pending their resettlement) treat—

- (a) the said person's becoming employed in the new undertaking as if it were the obtaining of employment; and
- (b) the said person's ceasing to be employed in the new undertaking as if it were the coming to an end of employment, notwithstanding that he ceases to be so employed in order that he may continue in employment elsewhere.

(3) In this section expressions have the same meanings as in the principal Act.

Payments
and receipts.

5.—(1) There shall be defrayed out of moneys provided by Parliament—

- (a) any increase attributable to the provisions of this Act in the sums payable out of such moneys under subsection (1) of section eleven of the principal Act,
- (b) any increase attributable to the provisions of section four of this Act in the sums payable out of such moneys under subsection (1) of section fourteen of the Employment and Training Act, 1948.

(2) There shall be paid into the Exchequer any increase attributable to the provisions of subsection (2) of section three of this Act in the sums payable into the Exchequer under subsection (2) of section eleven of the principal Act.

Short title,
interpretation,
construction
and citation.

6.—(1) This Act may be cited as the Distribution of Industry Act, 1950.

(2) In this Act the expression “the principal Act” means the Distribution of Industry Act, 1945.

(3) This Act, except section four thereof and so much of section five thereof as relates to the said section four, shall be construed as one with the principal Act.

(4) The principal Act and this Act, except section four thereof and so much of section five thereof as relates to the said section four, may be cited together as the Distribution of Industry Acts, 1945 and 1950; and the Employment and Training Act, 1948, section four of this Act and so much of section five thereof as relates to the said section four may be cited together as the Employment and Training Acts, 1948 and 1950.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Housing (Scotland) Act, 1935	25 & 26 Geo. 5. c. 41.
Housing Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Distribution of Industry Act, 1945	8 & 9 Geo. 6. c. 36.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Employment and Training Act, 1948	11 & 12 Geo. 6. c. 46.
Housing Act, 1949	12 & 13 Geo. 6. c. 60.
Housing (Scotland) Act, 1949	12 & 13 Geo. 6. c. 61.

CHAPTER 9

Merchant Shipping Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Regulations with respect to crew accommodation in fishing boats.
2. Engagement and discharge of crews.
3. Review of punishments imposed by naval courts.
4. Amendment of s. 744 of the Merchant Shipping Act, 1894.
5. Removal of doubts as to meaning of Summary Jurisdiction Acts in relation to Northern Ireland.
6. Payment of fees into the Exchequer.
7. Interpretation.
8. Short title, construction, citation and commencement.

FIRST SCHEDULE.—Provisions of Merchant Shipping Act, 1948, applied with modifications for the purposes of section one of this Act.

SECOND SCHEDULE.—Amendments of Merchant Shipping Act, 1894, relating to engagement and discharge of crews.

An Act to provide for regulating crew accommodation in fishing boats and for amending the Merchant Shipping Acts, 1894 to 1949, with respect to the engagement and discharge of crews, the review of punishments imposed by naval courts, fishing boats engaged in the Newfoundland cod fisheries, and proceedings in summary courts in Northern Ireland; and for purposes connected with the matters aforesaid.

[12th July 1950.]